

Tentative Rulings
September 16, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Prior to the hearing, you can email the completed Stipulation to Department S-17 at jgarcez@sb-court.org. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

17. *City of Needles v. Rivera, et al*, Case No. CIVSB2022575
Plaintiff City's Motion for Attorneys' Fees and Costs
9/16/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **CONTINUE** to allow movant to submit a declaration that includes a breakdown of attorney work and billed fees for that work. The Court cannot assess the reasonableness of the proposed attorneys' fees without such a review.

Case Summary

On February 17, 2020, the Plaintiff City filed this action against Defendants John and Linda Rivera for violation of the Needles Municipal Code and the California Health and Safety Code. In essence, violations relate to cultivation restrictions on medical marijuana. Previously, a total of 91 cannabis plants were found at the subject property, and Defendants do not have a license to operate a cultivation facilities or marijuana business, nor do they have the permits necessary for such cultivation.

Relevant here, Plaintiff City prevailed at trial on July 27, 2026. Judgement was entered for Plaintiff on August 26, 2026, in the amount of \$41,800. This motion for attorneys' fees and costs followed.

Summary of the Law

Attorneys' fees are recoverable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5(a)(10).) "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032(b).) The reasonableness of attorneys' fees is within the discretion of the trial court. (*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448.)

Analysis

Relevant here, the City indicates that the relevant municipal code indicates that "the city is entitled to recover its attorneys' fees and costs from opposing parties whenever it is the prevailing party in an adversarial legal proceeding regarding a municipal affair." (See Needles Muni. Code, Chpt. 12A-25 [Enforcement], 1-12 [Recovery of Attorneys' Fees and Costs]; & 2A-11 [Collection of Fines].) After assessing the *availability* of attorneys' fees, the Court must assess the *reasonableness* of the requested fees and costs.

Here, the requested \$77,409.80 in attorneys' fees and \$3,451.27 in costs are ostensibly supported by a declaration and exhibits. (See Nolan Decl., ¶¶10-16, Exhs. C-D.) However, while the proposed attorney rates appear reasonable, the supporting declaration *fails* to provide any breakdown of the actual attorney work performed by each billing attorney. (See Nolan Decl., ¶13 [rates].) Importantly, the assessment also appears to conflate staff time with costs and/or attorneys' fees. The Court cannot assess the reasonableness of the proposed attorneys' fees without an assessment of the work performed by each billing attorney, and it would therefore continue the matter to allow the filing of a supplemental declaration with that information.
